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CASE #	CASE NAME	HEARING NAME
CVRI2402696	SALAZAR VS COUNTY OF RIVERSIDE	MOTION FOR SUMMARY JUDGMENT ON 1ST AMENDED COMPLAINT FOR AUTO (OVER \$35,000) OF OSCAR SALAZAR

Tentative Ruling: The Court **GRANTS** Defendants County of Riverside and Nathan John Morgan's Motion for Summary Judgment.

Facts/Procedural Summary

This is a wrongful death action. Plaintiffs Oscar Salazar and Benigna Salazar are the father and mother of Decedent, Rafaela Adaly Salazar-Ruiz. Decedent died on May 25, 2023. Plaintiffs allege Decedent was a pedestrian crossing southbound on Cactus Street at approximately 3:54 a.m. Defendant Nathan Morgan was operating a 2020 Ford PIUV in the course and scope of his employment with the Riverside County Sheriff. (First Amended Complaint ¶21.) Plaintiffs allege Morgan struck Decedent with his car which resulted in Decedent's untimely death.

Defendants bring the instant motion for summary judgment. The motion was previously set for hearing on April 6, 2026, and was originally unopposed. At the hearing, the court continued the motion to be heard on June 24, 2026. On April 6, 2026, Defendants filed the missing declaration of Joshua F. Cervantes.

Defendants' motion is based on Plaintiffs' admissions made during discovery. On January 15, 2025, Defendant County of Riverside served Request for Admissions, Set One to Plaintiff Oscar Salazar. On January 16, 2025, Defendant served Request for Admissions, Set One to Plaintiff Benigna Salazar. Both Plaintiffs failed to provide responses to the Requests. (SUMF Nos. 1-4.)

On June 4, 2025, Defendant filed motions to deem Request for Admissions, Set One, to both Plaintiffs admitted due to their failure to provide responses. The motions were heard on August 18, 2025. (SUMF Nos. 5-7.) The Court granted the motions and deemed Plaintiffs to have admitted every request contained in the Request for Admissions. (SUMF Nos. 8-9.) Based upon these admissions, Defendants argue the instant motion for summary judgment must be granted.

Plaintiff Benigna Salazar opposes the motion. The Opposition consists of a two-page declaration where Plaintiff argues she does not believe the case should be decided on "paperwork and technical issues." Plaintiff notes she is representing herself and although she has tried to comply with the court deadlines, she has had difficulty following the legal process. Plaintiff further argues she requested an interpreter but was not provided with one. However, it is not clear when exactly Plaintiff requested an interpreter or was denied access to one.

In Reply, Defendants argue Plaintiff has not set forth any triable issues of material fact meaning the motion must be granted.

Analysis

I. Standard on Motion for Summary Judgment

Summary judgment is granted when a moving party establishes the right to entry of judgment as a matter of law. (CCP § 437c(c).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (CCP § 437c(p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Defendant, as the moving party, has the burden to show either that one or more elements of the cause of action cannot be established or that there is a complete defense to that cause of action. (CCP § 437c(p)(2).) Defendant can meet their burden by showing either: (1) affirmative evidence that shows an element of the claim cannot be established; or (2) showing an absence of evidence on a critical element of Plaintiff's claim.

Once the moving party has made such a showing, the burden shifts to the responding party to show that a triable issue of one or more material facts exists as to that cause of action or as to a defense to the cause of action. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849.) If the responding party does not make such a showing, summary judgment in favor of the moving party is appropriate.

"The purpose of the summary judgment procedure is not to try the issues but merely to discover ... whether the parties *possess evidence* which demands the analysis of trial." (*Colvin v. City of Gardena* (1992) 11 Cal.App.4th 1270, 1275 (italics added).) Summary judgment can be granted only where the essential facts are either conceded or beyond dispute. If there is one single material fact in dispute, the motion must be denied.

The court also has the power to summarily adjudicate that one or more causes of action have no merit, that there is no merit to one or more affirmative defenses, or that a defendant owed or did not owe a duty to plaintiff. A motion for summary adjudication shall only be granted if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (CCP § 437c(f)(1).)

II. Wrongful Death/Negligence

The only claims remaining in this action are the single cause of action for general negligence asserted by Plaintiffs Oscar Salazar and Benigna Salazar. (SUMF Nos. 55-61.) The wrongful death cause of action gives the representatives of a decedent as totally new right of action to compensate the heirs for the loss of companionship or other losses suffered as a result of the decedent's death. (*Quiroz v. Seventh Ave. Center* (2006) 140 Cal. App. 4th 1256, 1263.) The elements of a wrongful death cause of action are: (1) wrongful act or neglect on the part of one or more persons that (2) causes (3) the death of another person. (*Norbart v. Upjohn Co.* (1999) 21 Cal. 4th 383, 390.) To establish proximate cause in a wrongful death case, the wrongful act must be a

substantial factor in bringing about the death. (*Bromme v. Pavitt* (1992) 5 Cal. App. 4th 1487, 1497.) “The actor’s negligent conduct is not a substantial factor in bringing about harm to another if the harm would have been sustained even if the actor had not been negligent.” (*Id* at 1498.)

As noted above, this motion is based entirely on Plaintiffs’ admissions by failure to respond to Request for Admissions. Both Plaintiffs have admitted to the following:

- Plaintiffs sustained no damage as a result of the incident;
- Plaintiffs lack standing to bring the claims alleged in the Complaint;
- Decedent was negligent at the time of the incident;
- Decedent’s negligence contributed to the incident;
- Decedent is comparatively at fault for the incident;
- Plaintiffs did not receive economic or financial support from Decedent;
- Plaintiffs do not have any evidence to support their theory that County or Nathan Morgan are at fault for the incident;
- Defendants did not cause or contribute to the incident;
- Decedent caused the incident;
- Decedent had a history of drug use prior to the incident;
- Plaintiffs obtained custody of Decedent’s children due to Decedent’s drug use. (SUMF Nos. 11 – 53.)

Given the above admissions, Defendants have met their initial burden on summary judgment. Plaintiff Benigna Salazar’s Opposition does not include any evidence that creates triable issues of material fact. Plaintiff Oscar Salazar has not filed any Opposition to the motion and, as a result, has not demonstrated any triable issue of material fact.

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CASE #	CASE NAME	HEARING NAME
CVRI2503641	WISE VS DC LOGISTICS	MOTION TO BE RELIEVED AS COUNSEL FOR DC LOGISTICS

Tentative Ruling: The Court DENIES the Motion to be Relieved as Counsel for DC Logistics. Rule 3.1362 of the California Rules of Court specify the requirements for Motions to be Relieved as Counsel. That rule provides, in part: “The notice of motion and motion, the declaration, and the proposed order **must be served on the client** and on all other parties who have appeared in the case.” (emphasis added.) Here, the proofs of service attached to the Notice of Motion and Declaration in Support of Attorney’s Motion to be Relieved as Counsel, both filed June 12, 2026, reflect that the only persons served were the attorneys for plaintiff. The Proof of Service for the Proposed Order, filed June 26, 2026, reflects the same.